

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, MAY 5, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, May 5, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, May 4, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0086829 Discover Bank v. Rai, Diljoyt

Motion for Leave to Amend Complaint to Change Plaintiff Name Due to Merger

Plaintiff requests to amend its name to Capital One, N.A., as successor by merger to Discover Bank. Defendant has appeared in this action. The court grants plaintiff's unopposed motion for leave to amend the complaint to change plaintiff's name due to merger. Plaintiff's first amended complaint shall be deemed filed and served, and defendant's answer shall be deemed filed and served as to the first amended complaint. Plaintiff's name is amended to **Capital One, N.A., successor by merger to Discover Bank**.

2. M-CV-0092493 Wells Fargo Bank v. Santiago, Jazz

Motion to deem admitted plaintiff's requests for admissions, set one

Plaintiff moves to deem admitted plaintiff's requests for admissions, set one.

Section 2033.280 of the California Code of Civil Procedure states "[i]f a party to whom requests for admission are directed fails to serve a timely response... (b) [t]he requesting party may move for an order that the genuineness of any documents and the

truth of any matters specified in the requests be deemed admitted.” Unless the responding party serves responses, without objection and complies with the requirements set forth in Section 2033.220, prior to the hearing, [i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2033.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.) Code Civ. Proc., § 2033.280 (c).

Defendant did not file an opposition.

Plaintiff’s unopposed motion to deem admitted plaintiff’s requests for admissions, set one, is granted. (Code Civ. Proc., § 2033.280 (b).) Defendant is deemed to have admitted the matters set forth in plaintiff’s requests for admissions, set one.

3. M-CV-0096457 D'Amico, Amanda v. Yonko, Jacob

Defendant is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the First Amended Complaint (“FAC”)

Defendant Nancy Johnson demurs to the complaint in this unlawful detainer action. A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).) A pleading is “uncertain” if it is ambiguous and unintelligible. (*Id.* at subd. (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendant does not challenge any particular portion of the FAC, just that it is deficient, uncertain, and fails to state a cause of action for unlawful detainer. The court has carefully reviewed the FAC and the exhibits thereto. The court finds the FAC alleges facts sufficient to support a cause of action for unlawful detainer. The demurrer to the FAC is overruled.

Defendant shall file and serve an answer by May 11, 2026.

4. S-CV-0046823 Casey, Michael P v. Patrick, Sean

The motion to correct clerk’s record after transfer is continued to be heard on **May 12, 2026 at 8:30 a.m. in Department 42** to be heard together with another motion.